

BEFORE THE STATE BOARD OF ADDICTION COUNSELOR EXAMINERS AND THE
STATE BOARD OF LICENSED PROFESSIONAL COUNSELOR EXAMINERS

STATE OF COLORADO

Case Nos. 2016-915 & 2016-916

STIPULATION AND FINAL AGENCY ORDER

IN THE MATTER OF DISCIPLINARY PROCEEDINGS REGARDING THE CERTIFICATE
TO PRACTICE ADDICTION COUNSELING IN THE STATE OF COLORADO AND THE
LICENSE TO PRACTICE PROFESSIONAL COUNSELING IN THE STATE OF COLORADO
OF KATHYE PEBLEY, CAC III NO. 2780, LPC NO. 5833,

Respondent.

IT IS HEREBY STIPULATED by and between the State Board of Addiction Counselor
Examiners and the State Board of Licensed Professional Counselors (together, "Boards") and
Kathye Pebley ("Respondent") as follows:

1. The Boards have jurisdiction over the person of Respondent and the subject
matter of this Stipulation and Final Agency Order ("Order").
2. Respondent was certified to practice as a certified addiction counselor ("CAC III")
and licensed to practice as a professional counselor ("LPC") in the State of Colorado at all times
relevant herein.
3. This Order is a full and final resolution of Case Nos. 2016-915 and 2016-916.
This Order does not resolve any other cases, complaints, or matters, known or unknown to the
Boards or Respondent, as of the effective date of this Order.
4. Respondent admits the following:
 - a. Respondent is a Domestic Violence Offender Management Board
("DVOMB") full operating level treatment provider.
 - b. On or around August 2015, Respondent misrepresented herself as a DV
clinical supervisor by signing off on a DVOMB Application for supervision
hours. Respondent was not approved to provide DV clinical supervision.
 - c. Respondent signed off as a DV clinical supervisor on three (3) additional
applications in the past.

5. By virtue of the facts admitted in paragraph 4 above, the Boards find that Respondent violated §12-43-222(1)(g) and (h), C.R.S., and DVOMB Standard 9.03.

LETTER OF ADMONITION

6. The Boards hereby admonish Respondent pursuant to §§ 12-43-223(1)(a)(III) and 12-43-224(3)(d), C.R.S., for the conduct set forth above.

CONTINUING EDUCATION

7. Within twelve (12) months of the effective date of this Order, Respondent must successfully complete twenty (20) hours each year of Board-approved professional continuing education ("CE") courses in the areas of DVOMB standards, supervision, and ethics. Respondent shall obtain Board approval of the courses prior to enrolling in each course. Upon completion of a course, Respondent shall ensure that a certificate of completion is provided to the Boards. These hours of CE completed pursuant to this section shall be required in addition to, and may not be counted toward, the mandatory Continuing Professional Development requirements for an active Colorado certification or to meet any other certification or licensure requirements.

TERMS AND CONDITIONS

8. Respondent will strictly observe the prohibitions set forth in §12-43-222, C.R.S., and will ensure that she does not engage in any activities that are prohibited and that she practices in accordance with the generally accepted standards of practice.

9. All expenses incurred or associated with continuing education, or any other requirement necessary to fulfill the terms of this Order, shall be the sole responsibility of Respondent and not the Boards.

10. In the event Respondent relocates at any time before terms of this stipulation are completed, Respondent shall notify the Boards of the change of address within 30 days of the effective date of such change.

11. Respondent is fully aware of and understands the right to receive a formal notice of hearing and charges and to have a formal disciplinary hearing, pursuant to §12-43-224, C.R.S., and hereby waives those rights. Further, Respondent also acknowledges that this waiver constitutes a waiver of all rights to appeal in this matter.

12. This Order is entered into by Respondent voluntarily and without coercion, after an opportunity to consult with counsel and with full understanding of the legal consequences of this Order and the right to formal hearing on all matters herein.

13. This Order shall become an order of the Boards when it is accepted and signed by the Program Director or authorized Board representatives.

14. The Order entered pursuant to this Stipulation and Final Agency Order shall constitute a Board order for purposes of §12-43-222, C.R.S., and shall have the same force and effect as an order entered after a formal disciplinary hearing pursuant to §12-43-224, C.R.S.

15. Respondent acknowledges and agrees that any violation of this Order shall constitute a violation of a lawful Board Order and be grounds for further proceedings pursuant to the Mental Health Practice Act and, if proven, may constitute a basis for further disciplinary action. The pendency of any disciplinary action shall not affect the obligation of Respondent to comply with the terms of this Order, and this Order shall remain operative and in full force and effect.

16. This Order constitutes the entire agreement between Respondent and the Boards. There are no other promises expressed or implied. In the event that any provision of this Order is deemed unenforceable by a court of competent jurisdiction, such provision shall be severed, and the remainder of this Order shall be given full force and effect.

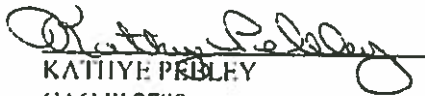
17. This Order shall become effective upon (a) mailing by first-class mail to Respondent at Respondent's address of record with the Boards, or (b) service by electronic means on Respondent at Respondent's electronic address of record with the Boards. Respondent hereby consents to service by electronic means if Respondent has an electronic address on file with the Boards.

18. This Order shall be a public record in the custody of the Boards.

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AGREED TO AND ACCEPTED BY:

RESPONDENT


KATIYE PEBLEY
CAC III 2780
LPC 5833

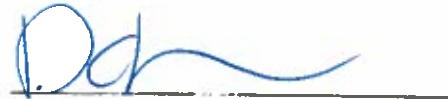
APPROVED AS TO FORM AND
SUBSTANCE BY:


Denis Lane
1912 West Colorado Avenue
Colorado Springs, Colorado 80904
(719) 635-4571
Denis@EthicalStudies.net

Attorney for Respondent

AGREED TO AND ORDERED BY:

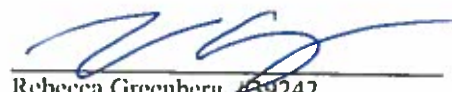
BOARD OF ADDICTION COUNSELOR
EXAMINERS AND BOARD OF LICENSED
PROFESSIONAL COUNSELOR EXAMINERS


DARCIE MAGNUSON
Program Director

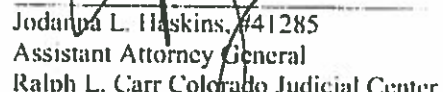
Effective this 24th day of
March, 2017.

APPROVED AS TO FORM AND
SUBSTANCE BY:

CYNTHIA H. COFFMAN
Attorney General


Rebecca Greenberg, #39242
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Counselor Examiners


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Attorney for the State Board Licensed
Professional Counselor Examiners

CERTIFICATE OF SERVICE

This is to certify that I have duly served the within **STIPULATION AND FINAL AGENCY ORDER** upon all parties herein by electronic means or by depositing copies of same in the United States mail, postage prepaid, at Denver, Colorado this 24th day of March, 2017, addressed as follows:

Kathye Gene Pebley
5160 N Union Blvd
Colorado Springs, CO 80918
Email: changesmade@earthlink.net

Denis Lane
1912 West Colorado Avenue
Colorado Springs, CO 80904
Email: denis@ethicalstudies.net

and via inter-agency mail to:

Rebecca Greenberg, #39242
Assistant Attorney General
Ralph L. Carr Colorado Judicial Center
1300 Broadway, 8th Floor
Denver CO 80203

Jodanna Haskins, #41285
Assistant Attorney General
Ralph L. Carr Colorado Judicial Center
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Denver CO 80203



Denise Wells
Discipline & Enforcement Specialist